

COMMITTEE ON HEALTH AND HUMAN SERVICES
SENATE AMENDMENTS TO H.B. 2932
(Reference to House engrossed bill)

1 Strike everything after the enacting clause and insert:
2 "Section 1. Title 36, chapter 29, article 1, Arizona Revised
3 Statutes, is amended by adding section 36-2905.05, to read:
4 36-2905.05. Contractors; reimbursement; noncontracting
5 providers; prohibitions
6 A. NOTWITHSTANDING ANY OTHER LAW TO THE CONTRARY:
7 1. A CONTRACTOR SHALL REIMBURSE A NONCONTRACTING PROVIDER FOR
8 LABORATORY SERVICES RENDERED TO A MEMBER WHO IS ENROLLED WITH THE
9 CONTRACTOR IF THE MEMBER WAS REFERRED BY A CONTRACTED PROVIDER OF THE
10 CONTRACTOR AT A RATE THAT IS NOT MORE THAN THE RATE THAT WOULD BE
11 REIMBURSED TO A CONTRACTING PROVIDER.
12 2. A CONTRACTOR MAY NOT REQUIRE PRIOR AUTHORIZATION FOR DIAGNOSTIC
13 SERVICES.
14 B. A CONTRACTOR MAY NOT TAKE OR THREATEN TO TAKE RETALIATORY ACTION
15 AGAINST A CONTRACTED PROVIDER FOR REFERRING A MEMBER TO A NONCONTRACTED
16 PROVIDER.
17 Sec. 2. Legislative intent
18 The legislature intends to promote cost controls through competition
19 and to avoid monopolistic practices that interfere with the free market.
20 Adequate oversight through rigorous audit practices is the alternative."
21 Amend title to conform

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